

Requirement Title: Arbitrator Frederick R. Ward and NTEU 245 Contract**Background**

The mission of the United States Patent and Trademark Office (USPTO) is to foster innovation and competitiveness by providing high quality and timely examination of patent and trademark applications, guiding domestic and international intellectual property policy, and delivering intellectual property information and education worldwide. The Office of General Counsel (OGC) and Office of General Law (OGL) supports the mission of the Agency.

To accomplish this mission, the Agency must hold hearings, hear appeals, and make decisions on a host of patent-related matters and non-patent related matters. The handling of these matters must be documented.

The Office of General Counsel (OGC) is responsible for overall management of the division and acts as the Under Secretary and Director's principal legal advisor in assuring the provision of legal advice and representation for the agency. OGC is also the delegated authority to hear appeals from decisions in enrollment and discipline matters, and to determine whether special circumstances exist pursuant to [35 U.S.C. § 122](#) for releasing information concerning patent applications.

The Office of General Law (OGL) provides general litigation and advisory services on matters concerning the administration and management of the USPTO. The OGL also represents USPTO in various administrative proceedings, including arbitration hearings addressing alleged contractual violations and disciplinary matters arising under the USPTO's various Collective Bargaining Agreements (CBA) with those unions representing the agency's bargaining unit employees.

Pricing for CLINs 0001 shall include all labor and materials needed to perform the arbitrator services for all consultation and litigation services.

CLIN 0001: NTEU 245

Arbitrator Frederick R. Ward				
Description	Qty	Unit	Unit Price	Total Amount
Review complaint and related file material; conduct legal research; and write decision	6	Days	\$1,600.00	\$9,600.00
Attend and hear arguments/Hold scheduling conferences	1	Day	\$1,600.00	\$1,600.00
Pre-arbitration decisions (no hearing date)	1	Day	\$1,600.00	\$1,600.00
TOTAL (taking into account that the parties split the total cost of the arbitration per the CBA)				For NTEU 245 matter: \$12,800 / 2 = \$6,400

Purpose

The purpose of this Statement of Work (SOW) is to acquire an arbitrator to resolve labor relations disputes upon invocation of arbitration by either party. Under Article 11, the Agency and NTEU 245 have agreed on terms setting forth the arbitration process including invocation, arbitrator selection, and scheduling, among other matters. In this instance, the parties have jointly selected Arbitrator Mr. Ward to hear the *NTEU Chapter 245 Institutional Grievance regarding the Agency's decision to increase the number of potential, annual employee paid trips under policies implementing the Telework Enhancement Act of 2010 (TEAP)*.

Scope

Once the USPTO and the Union have determined that the matter under dispute requires the appointment of an arbitrator to analyze the issues presented regarding actions taken against the grievant such a person shall be named.

Per the terms of the NTEU 245 CBA, Arbitrator Frederick Ward has accepted the parties' joint appointment under the terms set forth in Article 11, Section 17. As part of Arbitrator Ward's appointment he and parties may agree to hear the case on the briefs in lieu of holding a hearing, in which case he works with the parties to create a mutually acceptable schedule for brief submissions.

Deliverables

The deliverables are as follow:

SOW Section	Deliverable	Due Date	Delivery Method
	Review and analyze evidence in the case	As requested by the Contracting Officer's Representative (COR) and set forth in this SOW	Virtual remote meeting
	Attend and hear arguments, perform research and provide a written decision	Within 30 days of the close of the record	Virtual remote meeting
	In NTEU 245's case: accept submission of briefs by the parties (as well as rebuttal briefs, as appropriate), review and analyze the	Within 30-60 days of the final written submission	Virtual remote meeting

For NTEU 245, cancellation of postponement 15 days before the date the parties' briefs are initially due would result in a fee equal to the arbitrator's per diem rate of \$1,600. However, to the extent the parties mutually agree to postpone, delay, and/or cancel an arbitration proceeding (including via settlement), the parties will equally share the cost of any fees being charged by the arbitrator.

Contracting Officer's Authority

The Contracting Officer is the only person authorized to make any changes, or approve any changes in the requirements of this contract, and notwithstanding any provisions contained elsewhere in this contract, the said authority remains solely in the Contracting Officer. In the event the contractor makes any changes at the direction of any person other than the Contracting Officer, the change will be considered to have been without authority and no adjustment will be made in the contract price to cover any increase in costs occurred as a result thereof.

Period of Performance

The expected period of performance begins on the date the order is issued and continue for a period of approximately twelve months (12), with four (4) twelve-month options terminated sooner, extended, or otherwise modified in writing.

DATE	TASK
For NTEU 245 June 16, 2026 (estimated, this may be subject to change)	• Arbitration Hearing
TBD	• Possible first scheduling conference with the parties and the arbitrator

Place of Performance

Per terms of NTEU 245 CBA, all arbitrations are conducted virtually. If the matter is simply briefed then the place of performance would be the Arbitrator's choice.

Additional Documentation (if Applicable)

This SOW allows for a modification to add arbitrations for POPA and NTEU243.